



Journey Beyond – Kelsian Tourism Portfolio

MN - 85015

Phase 1 Determination

Acquisition may be put into effect

8 September 2026

1. Determination and statement of reasons

Notified acquisition	Experience Australia Group Pty Ltd (EAG) proposes to acquire directly or indirectly a portfolio of tourism assets from Kelsian Group Limited or its subsidiaries or controlled entities (Kelsian) (the Parties) comprising: • all of the share capital in each of SeaLink Fraser Island Pty Ltd, Captain Cook Cruises Pty Ltd, SeaLink Marina Pty Ltd, SeaLink Tasmania Pty Ltd, and Avonward Pty Ltd from Kelsian • all of the share capital in SeaLink Northern Territory Pty Ltd from Kelsian’s wholly-owned subsidiary, SeaLink Queensland Pty Ltd • the business and substantially all of the assets of the ‘Whitsundays Cruises and Ferries’ business from Curtis Island Assets Pty Ltd and Curtis Island Services Pty Ltd, via EAG’s wholly-owned subsidiary JB Whitsundays Operations Pty Ltd • the business and substantially all the assets of the ‘Adelaide Sightseeing’ business from Kangaroo Island SeaLink Pty Ltd via EAG’s wholly owned subsidiary JB Sightseeing Pty Ltd • Swan River Cruises, Swan Valley Tours, Bells Functions, which will be transferred from Vyscot Pty Ltd to Avonward Pty Ltd before completion (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, EAG, operates a range of experiential tourism businesses across Australia including under the brand name “Journey Beyond”. EAG’s experiences include tours, accommodation, rail journeys, scenic flights, and marine sightseeing. The vendor, Kelsian, is an ASX-listed company whose core business is bus, coach and marine transport operations for primarily government clients. EAG proposes to acquire from Kelsian a portfolio of tourism businesses, which includes the brands Captain Cook Cruises, Adelaide Sightseeing and K’gari Resorts and tourism ferry businesses in Queensland, Tasmania and the Northern Territory.
Overlap and relationship between the Parties	The Parties overlap in the supply of tourism experiences (including but not limited to sightseeing tours, cruises, and ‘fast boat’ tours) in Sydney, the Whitsundays, K’gari (Fraser Island), and South Australia. There is a vertical relationship between the parties as EAG’s subsidiary, Outback Spirit Tours, currently purchases accommodation, tour services and ferry services from Kelsian in K’gari and Tasmania. Kelsian also supplies services that are used by Outback Spirit Tours as part of its tour packages.

	The Parties also both supply ferry services from the mainland to Rottnest Island in Western Australia. Kelsian supplies these services through its business SeaLink Rottnest. However, EAG is not proposing to acquire SeaLink Rottnest as part of this Acquisition.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents provided by the parties, market feedback and publicly available information. The ACCC notes that EAG initially proposed to acquire SeaLink Rottnest and separately notified that acquisition to the ACCC. On 26 August 2026, Kelsian publicly announced that it had agreed with EAG not to proceed with the SeaLink Rottnest acquisition and that it intended to continue operating the business. The ACCC's assessment of that acquisition ceased on 26 August 2026. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • There is limited overlap between the tourism experiences the Parties offer or the Parties' tourism experiences are substantially differentiated and do not appear to compete particularly closely. • The merged firm would likely continue to face competition from alternative suppliers of tourism experiences in the areas of overlap. • The merged firm would be unlikely to have an ability and incentive to foreclose rivals' access to accommodation, tour or ferry services given there are alternative suppliers. With respect to the supply of ferry services to Rottnest Island, the ACCC considered whether the separation of Kelsian's SeaLink Rottnest from the tourism businesses and assets the subject of the Acquisition could weaken its competitive position and/or increase the likelihood of its exit. This could occur due to the loss of synergies between SeaLink Rottnest and the other businesses included in the tourism portfolio being sold to EAG as part of the Acquisition. The ACCC noted the information provided by Kelsian that SeaLink Rottnest is operationally independent from the tourism portfolio, complementary to Kelsian's retained SeaLink operations and profitable. The ACCC also noted representations made by Kelsian Group CEO, both publicly and separately to the ACCC, that Kelsian

	intends to continue operating SeaLink Rottnest. On this basis, the ACCC concluded that the Acquisition is unlikely to have the effect of substantially lessening competition in the supply of ferry services to Rottnest Island.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act